

HOUSE BILL 2285

By Mitchell

AN ACT to amend Tennessee Code Annotated, Title 40
and Title 41, relative to the sentencing of criminal
defendants.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-35-306(a), is amended by deleting "one (1) year" and substituting "three (3) years", and by adding the following sentence at the end of the subsection:

Notwithstanding another law to the contrary, the state is responsible for all costs of incarceration after the first year.

SECTION 2. Tennessee Code Annotated, Section 40-35-314(a), is amended by deleting "periodic or split confinement not to exceed one (1) year" and substituting "periodic confinement not to exceed one (1) year or split confinement not to exceed three (3) years".

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.